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~~~~~ TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

June 29, 2026

CASE NUMBER

24STCV07212

MOTION

Demurrer to Cross-Complaint

MOVING PARTIES

Cross-Defendants Sky Martial Arts L.A., Inc., and Yeonju

Yoo

OPPOSING PARTIES

Defendants and Cross-Complainants

CHJK Investment Company, Inc. and Buena Town Management, Inc.

## MOTION

Defendants and

Cross-Complainants CHJK Investment Company, Inc. and Buena Town Management, Inc. ("Defendants") cross-complained against Cross-Defendants Sky Martial Arts L.A., Inc. ("Sky Martial Arts") and Yeonju Yoo ("Yoo," collectively, "Cross-Defendants") for indemnity.

Cross-Defendants demur to the first and fourth causes of action for indemnity in the cross-complaint. Defendants oppose the demurrer.

## ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In the operative complaint, Plaintiffs Jack

Rosenfeld, Patrick Garcia, and Cooper Garcia-Rosenfeld ("Garcia-Rosenfeld," collectively, "Plaintiffs") allege Garcia-Rosenfeld sustained injuries in the stairwell of a two-story strip mall.

(See Complaint, pp. 3-4.) Defendants

contend Yoo's lease with Defendants, by which Yoo operated Sky Martial Arts, obligates Yoo to indemnify Defendants.

Defendants attach the lease to the cross-complaint. "If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence." (Holland v. Morse Diesel Intern., Inc. (2001) 86 Cal.App.4th 1443, 1447 (Holland).)

In the lease, Yoo agreed to indemnify

Defendants "from and against any and all claims . . . arising out of, involving, or in connection with, a Breach of the Lease by [Yoo] and/or the use and/or occupancy of the Premises and/or Project by [You] and/or [You's] employees, contractors or invitees." (Cross-Complaint, Exhibit B, § 8.7.) Cross-Defendants assert, the lease defines the premises as the retail space in the shopping center, not

the common areas. However, that is not entirely accurate in that the lease provides the "Project" includes "[t]he Premises, the Building, the Common Areas, the land upon which they are located, along with all other buildings and improvements thereon." (Id., Exhibit B, § 1.2(a); see also § 2.8 ["The term 'Common Areas' is defined as all areas and facilities outside the Premises and within the exterior boundary line of the Project . . . including . . . walkways ..."].) Further, the Court notes the lease provides Defendants' obligations include "keep[ing] in good order, condition and repair . . . walkways . . . serving the Common Areas and all parts thereof . . . ." (Id., Exhibit B., § 7.2.) The terms of the actual lease, attached as an exhibit to the Cross-Complaint, takes precedence over the parties' allegations. (Holland, supra, 86 Cal.App.4th at p. 1447.)

As Plaintiffs allege in their operative complaint Garcia-Rosenfeld's injuries occurred in a staircase in a common area, an area which Defendants were obligated to maintain. In their cross-complaint, Defendants assert no allegations such responsibilities fell to Cross-Defendants, and Cross-Defendants failed to fulfill them. As such, Defendants have not sufficiently alleged the bases upon which Cross-Defendants must indemnify Defendants for Plaintiffs' claims.

Accordingly, Defendants must amend their cross-complaint to allege facts which show Cross-Defendants are obligated to indemnify Defendants under the terms of the parties' lease agreement. The Court, therefore, sustains the demurrer but will provide Defendants with an opportunity to amend their cross-complaint.

## CONCLUSION AND ORDER

Cross-Defendants' demurrer to the first and fourth causes of action in the cross-complaint is sustained with leave to amend. Defendants are to file an amended cross-complaint within 20 days of notice of this order.

Cross-Defendants are ordered to provide notice of the Court's ruling and to file proof of service of same.